

Directive 2001/83/EC - Labelling / package leaflet

Article 54

Title: Mandatory Labelling Requirements for Medicinal Products

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 54, 2001, as amended/consolidated

Plain English Summary:

Article 54 specifies the information that must appear on the outer or immediate packaging of a medicinal product. This includes the product name, strength, active ingredients, pharmaceutical form, dosage information, expiry date, storage conditions, manufacturer details, authorization number and batch number.

For an Ayurvedic product classified as a medicinal product in the EU, these requirements determine much of the information that must appear on its packaging.

The Exact Legal Text:

The following particulars shall appear on the outer packaging of medicinal products or, where there is no outer packaging, on the immediate packaging:

(a) the name of the medicinal product followed by its strength and pharmaceutical form, and, if appropriate, whether it is intended for babies, children or adults; where the product contains up to three active substances, the international non-proprietary name (INN) shall be included, or, if one does not exist, the common name;

(b) a statement of the active substances expressed qualitatively and quantitatively per dosage unit or according to the form of administration for a given volume or weight, using their common names;

(c) the pharmaceutical form and the contents by weight, by volume or by number of doses of the product;

(d) a list of those excipients known to have a recognized action or effect and included in the detailed guidance published pursuant to Article 65. However, if the product is injectable, or a topical or eye preparation, all excipients must be stated;

(e) the method of administration and, if necessary, the route of administration.
Space shall be provided for the prescribed dose to be indicated;

(f) a special warning that the medicinal product must be stored out of the reach and sight of children;

(g) a special warning, if this is necessary for the medicinal product;

(h) the expiry date in clear terms (month/year);

(i) special storage precautions, if any;

(j) specific precautions relating to the disposal of unused medicinal products or waste derived from medicinal products, where appropriate, as well as reference to any appropriate collection system in place;

(k) the name and address of the marketing authorisation holder and, where applicable, the name of the representative appointed by the holder to represent him;

(l) the number of the authorization for placing the medicinal product on the market;

(m) the manufacturer's batch number;

(n) in the case of non-prescription medicinal products, instructions for use;

(o) for medicinal products other than radiopharmaceuticals referred to in Article 54a(1), safety features enabling wholesale distributors and persons authorised or entitled to supply medicinal products to the public to:

— verify the authenticity of the medicinal product, and

— identify individual packs,

as well as a device allowing verification of whether the outer packaging has been tampered with.

Keywords/Triggers:

EU medicinal labelling, Ayurvedic medicine packaging, active ingredients label, medicinal product expiry date, EU product packaging, herbal medicine label, pharmaceutical form, medicinal product batch number

Article 54a

Title: Safety Features for Medicinal Products

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 54a, 2001, as amended/consolidated

Plain English Summary:

Article 54a establishes safety-feature requirements for certain medicinal products to allow their authenticity to be verified and individual packs to be identified. Prescription medicines generally require these features, while non-prescription medicines may require them when specifically identified as being at risk of falsification.

This may become relevant to an Ayurvedic product if it is legally classified as a medicinal product and falls within the applicable safety-feature requirements.

The Exact Legal Text:

1. Medicinal products subject to prescription shall bear the safety features referred to in point (o) of Article 54, unless they have been listed in accordance with the procedure pursuant to point (b) of paragraph 2 of this Article.

Medicinal products not subject to prescription shall not bear the safety features referred to in point (o) of Article 54, unless, by way of exception, they have been listed in accordance with the procedure pursuant to point (b) of paragraph 2 of this Article, after having been assessed to be at risk of falsification.

2. The Commission shall adopt, by means of delegated acts in accordance with Article 121a and subject to the conditions laid down in Articles 121b and 121c, measures supplementing point (o) of Article 54 with the objective of establishing the detailed rules for the safety features referred to in point (o) of Article 54.

Keywords/Triggers:

medicinal product authentication, EU safety features, anti-counterfeit medicine, prescription medicine packaging, medicinal product serialization, falsified medicines, product authenticity

Article 55

Title: Immediate Packaging Requirements

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 55, 2001, as amended/consolidated

Plain English Summary:

Article 55 specifies what information must appear on immediate packaging such as blister packs and small packaging units. Depending on the packaging type, requirements include the product name, authorization holder, expiry date, batch number, administration method and contents.

This is relevant when an Ayurvedic medicinal product is packaged as tablets, capsules, pills or other small units.

The Exact Legal Text:

1. The particulars laid down in Article 54 shall appear on immediate packagings other than those referred to in paragraphs 2 and 3.
2. The following particulars at least shall appear on immediate packagings which take the form of blister packs and are placed in an outer packaging that complies with the requirements laid down in Articles 54 and 62.

the name of the medicinal product as laid down in point (a) of Article 54,

the name of the holder of the authorization for placing the product on the market,

the expiry date,

the batch number.

3. The following particulars at least shall appear on small immediate packaging units on which the particulars laid down in Articles 54 and 62 cannot be displayed:

the name of the medicinal product as laid down in point (a) of Article 54 and, if necessary, the route of administration,

the method of administration,

the expiry date,

the batch number,

the contents by weight, by volume or by unit.

Keywords/Triggers:

blister pack requirements, tablet packaging EU, capsule labelling, medicinal batch number, immediate packaging, Ayurvedic pill packaging, expiry date packaging

Article 56

Title: Legibility of Medicinal Product Labelling

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 56, 2001, as amended/consolidated

Plain English Summary:

Information required on medicinal-product packaging must be easy to read, clearly understandable and permanent. An Ayurvedic medicinal product's required label information therefore cannot be presented in an unclear or easily removable manner.

The Exact Legal Text:

The particulars referred to in Articles 54, 55 and 62 shall be easily legible, clearly comprehensible and indelible.

Keywords/Triggers:

EU label legibility, medicinal packaging text, readable medicine label, permanent labelling, Ayurvedic medicine label, EU packaging requirements

Article 56a

Title: Braille and Accessible Package Information

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 56a, 2001, as amended/consolidated

Plain English Summary:

The name of a medicinal product must also be provided in Braille on its packaging. The marketing authorization holder must also make the package leaflet available in appropriate formats for blind and partially sighted patients when requested.

The Exact Legal Text:

The name of the medicinal product, as referred to in Article 54, point (a) must also be expressed in Braille format on the packaging. The marketing authorisation holder shall ensure that the package information leaflet is made available on request from patients' organisations in formats appropriate for the blind and partially-sighted.

Keywords/Triggers:

Braille medicine packaging, accessible medicine label, EU Braille requirement, medicinal package leaflet, visually impaired patients, accessible Ayurvedic medicine

Article 57

Title: Additional Labelling Requirements

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 57, 2001, as amended/consolidated

Plain English Summary:

EU Member States may require additional labelling information relating to matters such as price, reimbursement, supply status, authenticity and identification. These requirements can therefore vary according to the Member State where the product is marketed.

The Exact Legal Text:

Notwithstanding Article 60, Member States may require the use of certain forms of labelling of the medicinal product making it possible to ascertain:

the price of the medicinal product,

the reimbursement conditions of social security organizations,

the legal status for supply to the patient, in accordance with Title VI,

authenticity and identification in accordance with Article 54a(5).

For medicinal products authorised under Regulation (EC) No 726/2004, Member States shall, when applying this Article, observe the detailed guidance referred to in Article 65 of this Directive.

Keywords/Triggers:

EU medicine labelling, Member State labelling, medicinal product price, reimbursement label, supply status, authenticity requirements, EU market access

Article 58

Title: Package Leaflet Requirement

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 58, 2001, as amended/consolidated

Plain English Summary:

Medicinal products generally must include a package leaflet unless all required information is directly provided on the outer or immediate packaging. This means an Ayurvedic medicinal product marketed in the EU generally needs appropriate patient information accompanying the product.

The Exact Legal Text:

The inclusion in the packaging of all medicinal products of a package leaflet shall be obligatory unless all the information required by Articles 59 and 62 is directly conveyed on the outer packaging or on the immediate packaging.

Keywords/Triggers:

EU package leaflet, Ayurvedic medicine leaflet, patient information leaflet, medicinal product instructions, herbal medicine leaflet, EU medicine packaging

Article 59

Title: Required Information in Package Leaflet

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 59, 2001, as amended/consolidated

Plain English Summary:

Article 59 sets out the information that must appear in the package leaflet, including the product's identity, therapeutic indications, contraindications, precautions, interactions, dosage, administration, adverse reactions, composition, storage information and manufacturer details.

For an Ayurvedic medicinal product, this is important because the patient-facing leaflet must provide the required safety and usage information.

The Exact Legal Text:

1. The package leaflet shall be drawn up in accordance with the summary of the product characteristics; it shall include, in the following order:

(a) for the identification of the medicinal product:

(i) the name of the medicinal product followed by its strength and pharmaceutical form, and, if appropriate, whether it is intended for babies, children or adults. The common name shall be included where the product contains only one active substance and if its name is an invented name;

(ii) the pharmaco-therapeutic group or type of activity in terms easily comprehensible for the patient;

(b) the therapeutic indications;

(c) a list of information which is necessary before the medicinal product is taken:

(i) contra-indications;

(ii) appropriate precautions for use;

(iii) forms of interaction with other medicinal products and other forms of interaction (e.g. alcohol, tobacco, foodstuffs) which may affect the action of the medicinal product;

(iv) special warnings;

(d) the necessary and usual instructions for proper use, and in particular:

(i) the dosage,

(ii) the method and, if necessary, route of administration;

(iii) the frequency of administration, specifying if necessary the appropriate time at which the medicinal product may or must be administered;

(iv) the duration of treatment, where it should be limited;

(v) the action to be taken in case of an overdose;

(vi) what to do when one or more doses have not been taken;

(vii) indication, if necessary, of the risk of withdrawal effects;

(viii) a specific recommendation to consult the doctor or the pharmacist, as appropriate, for any clarification on the use of the product;

(e) a description of the adverse reactions which may occur under normal use of the medicinal product and, if necessary, the action to be taken in such a case;

(f) a reference to the expiry date indicated on the label, with:

- (i) a warning against using the product after that date;
- (ii) where appropriate, special storage precautions;
- (iii) if necessary, a warning concerning certain visible signs of deterioration;
- (iv) the full qualitative composition (in active substances and excipients) and the quantitative composition in active substances, using common names, for each presentation of the medicinal product;
- (v) for each presentation of the product, the pharmaceutical form and content in weight, volume or units of dosage;
- (vi) the name and address of the marketing authorisation holder and, where applicable, the name of his appointed representatives in the Member States;
- (vii) the name and address of the manufacturer;
- (g) where the medicinal product is authorised in accordance with Articles 28 to 39 under different names in the Member States concerned, a list of the names authorised in each Member State;
- (h) the date on which the package leaflet was last revised.

Keywords/Triggers:

EU package leaflet requirements, Ayurvedic medicine instructions, medicinal dosage information, contraindications, herbal medicine warnings, adverse reactions, medicinal product composition

Article 60

Title: Mutual Recognition of Compliant Labelling

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 60, 2001, as amended/consolidated

Plain English Summary:

A Member State generally cannot prevent a medicinal product from being marketed on labelling or package-leaflet grounds if those materials comply with the requirements of this Title.

The Exact Legal Text:

Member States may not prohibit or impede the placing on the market of medicinal products within their territory on grounds connected with labelling or the package leaflet where these comply with the requirements of this Title.

Keywords/Triggers:

EU market access labelling, compliant medicinal label, Member State market access, package leaflet compliance, EU herbal medicine

Article 61

Title: Approval and Changes to Labelling and Package Leaflet

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 61, 2001, as amended/consolidated

Plain English Summary:

Packaging mock-ups and the draft package leaflet must be submitted as part of the marketing authorization process. Non-compliant labelling or leaflets can lead to refusal, and proposed changes must generally be submitted to the competent authorities.

The Exact Legal Text:

1. One or more mock-ups of the outer packaging and the immediate packaging of a medicinal product, together with the draft package leaflet, shall be submitted to the authorities competent for authorising marketing when the marketing authorisation is requested. The results of assessments carried out in cooperation with target patient groups shall also be provided to the competent authority.
2. The competent authority shall refuse the marketing authorization if the labelling or the package leaflet do not comply with the provisions of this Title or if they are not in accordance with the particulars listed in the summary of product characteristics.
3. All proposed changes to an aspect of the labelling or the package leaflet covered by this Title and not connected with the summary of product characteristics shall be submitted to the authorities competent for authorizing marketing. If the competent authorities have not opposed a proposed change within 90 days following the introduction of the request, the applicant may put the change into effect.
4. The fact that the competent authority do not refuse a marketing authorization pursuant to paragraph 2 or a change to the labelling or the

package leaflet pursuant to paragraph 3 does not alter the general legal liability of the manufacturer and the marketing authorization holder.

Keywords/Triggers:

EU marketing authorization label, packaging mock-up, package leaflet approval, label change, medicinal authorization rejection, EU herbal product registration

Article 62

Title: Non-Promotional Symbols and Pictograms

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 62, 2001, as amended/consolidated

Plain English Summary:

Packaging and package leaflets may use symbols or pictograms to clarify required information or provide useful information to patients. However, these elements cannot be promotional.

The Exact Legal Text:

The outer packaging and the package leaflet may include symbols or pictograms designed to clarify certain information mentioned in Articles 54 and 59(1) and other information compatible with the summary of the product characteristics which is useful for the patient, to the exclusion of any element of a promotional nature.

Keywords/Triggers:

medicinal packaging symbols, EU pictogram rules, non-promotional packaging, herbal medicine packaging, patient information, medicine advertising packaging

Article 63

Title: Language and Readability Requirements

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 63, 2001, as amended/consolidated

Plain English Summary:

Required labelling information must generally be provided in the official language(s) of the EU Member State where the medicinal product is marketed. The package leaflet must also be clear, understandable and legible.

The Exact Legal Text:

1. The particulars for labelling listed in Articles 54, 59 and 62 shall appear in an official language or official languages of the Member State where the medicinal product is placed on the market, as specified, for the purposes of this Directive, by that Member State.

The first subparagraph shall not prevent these particulars from being indicated in several languages, provided that the same particulars appear in all the languages used.

2. The package leaflet must be written and designed in such a way as to be clear and understandable, enabling users to act appropriately, when necessary with the help of health professionals. The package leaflet must be clearly legible in an official language or official languages of the Member State where the medicinal product is placed on the market, as specified, for the purposes of this Directive, by that Member State.
3. Where the medicinal product is not intended to be delivered directly to the patient, or where there are severe problems in respect of the availability of the medicinal product, the competent authorities may grant certain exemptions subject to measures necessary to safeguard human health.

Keywords/Triggers:

EU medicinal language requirements, package leaflet language, EU market language, herbal medicine leaflet, label translation, medicinal product readability

Article 64

Title: Suspension for Non-Compliant Labelling

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 64, 2001, as amended/consolidated

Plain English Summary:

If medicinal-product labelling or the package leaflet does not comply with EU requirements and the problem is not corrected after notice, the competent authority can suspend the marketing authorization.

The Exact Legal Text:

Where the provisions of this Title are not complied with, and a notice served on the person concerned has remained without effect, the competent authorities of the Member States may suspend the marketing authorization, until the labelling and the package leaflet of the medicinal product in question have been made to comply with the requirements of this Title.

Keywords/Triggers:

EU label non-compliance, marketing authorization suspension, medicinal product packaging violation, herbal medicine compliance, EU regulatory enforcement

Article 65

Title: EU Guidance on Medicinal Product Labelling

Jurisdiction: International

Category: International

Source Citation: Directive 2001/83/EC, Article 65, 2001, as amended/consolidated

Plain English Summary:

The European Commission is required to publish detailed guidance concerning medicinal-product labelling. This includes special warnings, information for non-prescription medicines, legibility, authentication, excipients and implementation of Article 57.

The Exact Legal Text:

In consultation with the Member States and the parties concerned, the Commission shall draw up and publish detailed guidance concerning in particular:

- (a) the wording of certain special warnings for certain categories of medicinal products;
- (b) the particular information needs relating to non-prescription medicinal products;
- (c) the legibility of particulars on the labelling and package leaflet;
- (d) the methods for the identification and authentication of medicinal products;
- (e) the list of excipients which must feature on the labelling of medicinal products and the way in which these excipients must be indicated;
- (f) harmonised provisions for the implementation of Article 57.

Keywords/Triggers:

EU medicinal labelling guidance, excipient labelling, special warnings, medicine authentication, non-prescription medicine label, package leaflet guidance, EU herbal medicine rules